

**In The
Supreme Court of the United States**

GATEWAY CITY CHURCH; THE HOME CHURCH; THE SPECTRUM CHURCH,
ORCHARD COMMUNITY CHURCH; TRINITY BIBLE CHURCH,

Applicants,

v.

GAVIN NEWSOM, in his official capacity as Governor of the State of California;
SANDRA SHEWRY, M.D., in her official capacity as Acting Director of California
Department of Public Health; SARA H. CODY, M.D., in her official capacity as Santa
Clara County Health Officer; COUNTY OF SANTA CLARA,

Respondents.

To the Honorable Elena Kagan,
Associate Justice of the United States Supreme Court
and Circuit Justice for the Ninth Circuit

**Emergency Application for Writ of Injunction Or In The Alternative For
Certiorari Before Judgment Or Summary Reversal**
Relief Requested by Sunday, February 21, 2021

Kevin T. Snider *Counsel of Record*
Emily C. Mimnaugh
PACIFIC JUSTICE INSTITUTE
P.O. Box 276600
Sacramento, CA 95827
Tel. (916) 857-6900
E-mail: ksnider@pji.org
emimnaugh@pji.org

Marlis McAllister
McALLISTER LAW GROUP
P.O. Box 756
Pine Grove, CO 80470
Tel. (650) 346-3792
E-mail: marlis@mcallisterlaw.net

Sharonrose Cannistraci
CANNISTRACI LAW FIRM
236 N. Santa Cruz, Ave., Suite 217
Los Gatos, California 95030
Tel. (408) 307-5662
E-mail: cannistracilaw@gmail.com

Counsel for Applicants

QUESTION PRESENTED

Does the County of Santa Clara's 0% capacity public health order on indoor worship services violate the Free Exercise clause of the First Amendment?

PARTIES AND RULE 29.6 STATEMENT

The following list provides the names of all parties to the present Emergency Application for Writ of Injunction and the proceedings below:

Applicants are Gateway City Church, The Home Church, The Spectrum Church, Orchard Community Church, and Trinity Bible Church. These are Plaintiffs in the U.S. District Court for the Northern District of California, referred to herein as the District Court, and are the Appellants in the U.S. Court of Appeals for the Ninth Circuit, referred to herein as the Ninth Circuit.

Gateway City Church is a domestic nonprofit religious corporation incorporated under the laws of the State of California, and does not have a parent corporation, or issue stock.

The Home Church, Inc. is a domestic nonprofit religious corporation incorporated under the laws of the State of California, and does not have a parent corporation, or issue stock.

The Spectrum Church, San Francisco Bay Area, Inc. is a domestic nonprofit religious corporation incorporated under the laws of the State of California, and does not have a parent corporation, or issue stock.

Orchard Community Church of Campbell is a domestic nonprofit religious corporation incorporated under the laws of the State of California, and does not have a parent corporation, or issue stock.

Trinity Bible Church is a domestic nonprofit religious corporation incorporated under the laws of the State of California, and does not have a parent corporation, or issue stock.

Respondents are Gavin Newsom, in his official capacity as Governor of the State of California; Sandra Shewry, M.D., in her official capacity as Acting Director of California Department of Public Health, Sara H. Cody, M.D., in her official capacity as Santa Clara County Health Officer, County of Santa Clara. Respondents Newsom and Shewry are jointly represented and referred to herein as the State. Respondents Cody and the County of Santa Clara are jointly represented and referred to herein as the County.

DECISIONS BELOW

All decisions in this case in the lower courts are styled *Gateway City Church v. Newsom*.

- The District Court’s decision granting in part and denying in part Plaintiffs’ motion for a preliminary injunction is attached hereto as Exhibit D.

- The District Court’s order granting in part Plaintiffs’ emergency motion to enjoin State and County COVID 19 restrictions pending interlocutory appeal is attached hereto as Exhibit C.
- The District Court’s order granting County’s motion for leave to file a motion for reconsideration and staying the order granting in part the Plaintiffs’ emergency motion to enjoin State and County COVID 19 restrictions pending interlocutory appeal is attached hereto as Exhibit B.
- The Ninth Circuit’s order denying the Appellants’ emergency motion for injunction pending appeal is attached hereto as Exhibit A.

ADDITIONAL EXHIBITS:

- *Santa Clara County Public Health Directive: CAPACITY LIMITATIONS* attached hereto as Exhibit E (the Capacity Directive).
- *Santa Clara County Public Health Directive: GATHERINGS* attached hereto as Exhibit F (the Gathering Directive).

JURISDICTION

Applicants have pending an interlocutory appeal in the Ninth Circuit. This Court has jurisdiction under 28 U.S.C. § 1651.

TABLE OF CONTENTS

QUESTION PRESENTED.....	ii
PARTIES AND RULE 29.6 STATEMENT	iii
DECISIONS BELOW	iii
ADDITIONAL EXHIBITS.....	iii
JURISDICTION	iv
TABLE OF CONTENTS.....	v
TABLE OF AUTHORITIES	vi
TO THE HONORABLE ELENA KAGAN, ASSOCIATE JUSTICE OF THE SUPREME COURT AND CIRCUIT JUSTICE FOR THE NINTH CIRCUIT	1
INTRODUCTION	3
SUMMARY OF THE ARGUMENT	3
SUMMARY OF FACTS AND PROCEDURAL HISTORY	5
General Litigation Challenge	5
Challenge to County Orders Relevant to this Application.....	6
Relevant Procedural History.....	9
REASONS FOR GRANTING THE APPLICATION	10
I. THE VIOLATION OF THE CHURCHES' RIGHTS IS INDISPUTABLY CLEAR.....	10
A. The County's 0% capacity for indoor worship services is neither	

neutral nor generally applicable.	9
B. Use of the wrong legal standard by the lower courts is a sufficient ground to grant the application until the County carries its legal burden	16
II. THE CHURCHES FACE IRREPARABLE HARM BY THE CONTINUED EXCLUSION OF CONGREGANTS FROM INDOOR WORSHIP SERVICES.....	19
III. THE BALANCE OF HARDSHIPS TIPS IN THE CHURCHES' FAVOR	20
IV. AN INJUNCTION IS IN THE PUBLIC INTEREST.....	21
V. IN THE ALTERNATIVE, THE COURT SHOULD ALSO GRANT CERTIORARI BEFORE JUDGMENT.....	22
CONCLUSION.....	22

INDEX OF EXHIBITS

EXHIBIT A – NINTH CIRCUIT’S ORDER DENYING THE
APPELLANTS’ EMERGENCY MOTION FOR INJUNCTION
PENDING APPEAL

EXHIBIT B – DISTRICT COURT’S ORDER GRANTING COUNTY’S
MOTION FOR LEAVE TO FILE A MOTION FOR
RECONSIDERATION AND STAYING THE ORDER
GRANTING IN PART THE PLAINTIFFS’ EMERGENCY
MOTION TO ENJOIN STATE AND COUNTY COVID 19
RESTRICTIONS PENDING INTERLOCUTORY APPEAL

EXHIBIT C – DISTRICT COURT’S ORDER GRANTING IN PART
PLAINTIFFS’ EMERGENCY MOTION TO ENJOIN STATE
AND COUNTY COVID 19 RESTRICTIONS PENDING
INTERLOCUTORY APPEAL

EXHIBIT D – DISTRICT COURT’S DECISION GRANTING IN PART
AND DENYING IN PART PLAINTIFFS’ MOTION FOR A
PRELIMINARY INJUNCTION

EXHIBIT E – *SANTA CLARA COUNTY PUBLIC HEALTH
DIRECTIVE: CAPACITY LIMITATIONS*

EXHIBIT F – *SANTA CLARA COUNTY PUBLIC HEALTH
DIRECTIVE: GATHERINGS*

TABLE OF AUTHORITIES

CASES

<i>Am. Trucking Associations, Inc. v. Gray</i> , 483 U.S. 1306 (1987)	10
<i>College Republicans at San Francisco State University v. Reed</i> , 523 F. Supp. 2d 1005 (N.D. Cal. 2007)	20
<i>Church of Lukumi Babalu Aye v. City of Hialeah</i> , 508 U.S. 530 (1993)	12-13, 18-19
<i>de Jesus Ortega Melendres v. Arpaio</i> , 695 F.3d 990 (9th Cir. 2012)	21
<i>Elrod v. Burns</i> , 427 U.S. 347 (1976)	19
<i>McDaniel v. Paty</i> , 435 U.S. 618 (1978)	12-13
<i>Sammartano v. First Jud. Dist. Ct.</i> , 303 F.3d 959 (9th Cir. 2002)	20
<i>South Bay United Pentecostal Church v. Gavin Newsom</i> , 590 U.S. ____ (2020)	16
<i>South Bay United Pentecostal Church, et al. v. Newsom</i> , 592 U.S. ____ (Feb. 5, 2021) No. 20A136 (20-746)	<i>passim</i>
<i>Roman Catholic Diocese of Brooklyn v. Cuomo</i> , 590 U.S. ____ (2020)	<i>passim</i>
<i>Turner Broadcasting System, Inc. v. FCC</i> , 507 U.S. 1301(1993)	10
<i>W. Va. State Bd. of Educ. v. Barnette</i> , 319 U.S. 624 (1943)	20

STATUTES

28 U.S.C. § 1651	iv
28 U.S.C. § 2101	22

RULES

Sup. Ct. Rule 20.....	1
Sup. Ct. Rule 22.....	1
Sup. Ct. Rule 23.....	1
Sup. Ct. Rule 29.6.....	ii

**TO THE HONORABLE ELENA KAGAN, ASSOCIATE JUSTICE OF THE
SUPREME COURT AND CIRCUIT JUSTICE FOR THE NINTH
CIRCUIT:**

Pursuant to Rules 20, 22, and 23 of the Rules of this Court, and 28 U.S.C. § 1651, Appellants-Applicants Gateway City Church, The Home Church, The Spectrum Church, Orchard Community Church, and Trinity Bible Church (“Churches”) respectfully request a writ of injunction precluding enforcement against them of a public health order prohibiting indoor gatherings for worship services by the County of Santa Clara and the Santa Clara County Health Officer, Sara H. Cody, M.D. (collectively “County”).

The Supreme Court handed down an order in the case *South Bay United Pentecostal Church, et al. v. Newsom*, 592 U.S. ____ (Feb. 5, 2021) No. 20A136 (20-746) (*South Bay II*) **after** the District Court issued an order denying a request for a preliminary injunction against the 0% capacity restriction on houses of worship by both the State and County Defendants. The Churches submitted a notice of the recent decision in *South Bay II* to supplement their emergency motion in the District Court for an injunction pending interlocutory appeal. The District Court granted that motion as to **both** the State and County Defendants requiring them to allow the Churches to meet at 25% capacity which was consistent with the Supreme Court’s order in *South Bay II*. The State Defendants complied with this Court’s order in *South Bay II*, allowing houses of worship to meet at 25% capacity. But the next day the County issued a public health order allowing indoor worship services at **only 20%**

capacity. That same day the County filed a motion seeking reconsideration. This motion was granted by the District Court the following evening, further staying its prior order on the injunction pending appeal. The following day the County reposted a public health order which provides in pertinent part as follows:

Business/Entity/Activity Type	Indoors	Outdoors
Gatherings (<i>e.g.</i> , political events, weddings, funerals, worship services, movie showings, cardroom operations)	Prohibited	Allowed up to 200 people per gathering, but subject to the limitations set forth by the State, which generally prohibit all gatherings except religious services, cultural ceremonies, political protests, other gatherings allowed by a State guidance document, and outdoor gatherings of up to 3 households.

The County public health order allows houses of worship to meet at 20% capacity for any purpose **except worship services**.

An emergency motion pending appeal was submitted to the Ninth Circuit's motions panel to compel the County to allow the Churches to meet on Sunday at 25% capacity per *South Bay II*. The Ninth Circuit denied the motion on Friday evening (Feb. 12). (Since the State Defendants have complied with this Court's 25% capacity order, they are **not** the subject of this application).

In a state stretching nearly 800 miles, all houses of worship are allowed to meet at 25% capacity. The lone exception is Santa Clara County where there remains a 0% capacity allowance for indoor worship services. Therefore, the Churches respectfully

request that this Circuit Justice grant the emergency application for writ of injunction or refer this application to the Court. In the alternative, the applicants request the granting of certiorari before judgment or summary reversal.

INTRODUCTION

Despite the *South Bay II* ruling by the Supreme Court which reopened houses of worship to 25% capacity from the Mexican border to Oregon, the County of Santa Clara sits as an island of tyranny with a **0% capacity** for indoor worship services. By this application, the Churches seek to join the rest of the faithful across the State to worship God this Sunday, February 21, or as soon thereafter as this matter can be heard.

SUMMARY OF THE ARGUMENT

For purposes of clarity, this motion seeks immediate relief from the County's order, rather than the State's order. The County public health order provides that "gatherings" which are "worship services" are prohibited indoors. Numerous other entities and activities which were the subject of the Supreme Court's decision in *South Bay II* are allowed in the County at 20%. These are: grocery and retail stores, personal care businesses (e.g., hair salons, nail care, tattoo and body art, skin care, waxing and hair removal), other "non-essential limited services" (e.g., pet grooming and shoe repair), indoor public transit waiting areas, all other essential and critical infrastructure facilities (including government facilities), and any other facility

allowed to open to the public under State and County orders. Exh. E at 2.

The lower courts committed error by finding the County's orders to be a neutral law of general applicability and thus measuring it under rational basis. Because the County orders (1) enumerate religious conduct (worship services) and (2) allow for other types of activities and entities to meet at 20% and churches at 0% capacity for indoor worship services, strict scrutiny review is triggered.

In addition, airport gates are similar comparators to places of worship in terms of time (45-90 minutes), physical space at the gate, and number of persons gathered (100-400 people). The lower court asserted that an airport is not a *gathering* under the County's boutique definition of that term: "bringing together multiple people from separate households in a single space . . . at the same time and in a coordinated fashion." Exh. F. The Churches disagree. Persons at airport gates fall within that meaning because there are multiple people from separate households at the same time for coordinated activity. It is difficult to conceive of a more coordinated gathering than waiting for a flight. In sum, the exemption for airports is not a generally applicable law.

In view of the Supreme Court's decision last week in *South Bay II*, and that houses of worship are meeting at 25% throughout California – except for Santa Clara County – the lower courts committed indisputable error. The harm to the Churches is profound and irreparable. Immediate relief is needed. The Churches have been closed for the better part of a year, and it is in the public interest that they be able to

join houses of worship across California **this weekend** for religious worship.

SUMMARY OF FACTS AND PROCEDURAL HISTORY

General Litigation Challenge

The Churches challenge California’s 4-tier Blueprint for a Safer Economy and the County’s public health order (Exh. D, Order at 6), both of which completely prohibit indoor gatherings of groups of people for worship. The Churches are located in Santa Clara County, California, and they include thousands of residents who worship in their sanctuaries. They conduct worship services for their congregations each weekend which commonly include the common elements of prayer, reading from sacred texts, music, Holy Communion, and the delivery of a sermon. Like most churches in the Christian faith, such services have been practiced at all times and all places for nearly two millennia without interruption. That is, until now.

Governor Gavin Newsom proclaimed a state of emergency on March 4, 2020, in response to the novel coronavirus (“COVID 19”). The Governor issued Executive Order N-33-20 on March 19, which incorporates an order of the State Public Health Officer and mandates, in pertinent part:

all individuals living in the State of California to stay home or at their place of residence except as needed to maintain continuity of operations of the federal critical infrastructure sectors as outlined at <https://www.cisa.gov/identifying-critical-infrastructure-during-covid-19>.

The following month the State clarified that “critical infrastructure” generally included

Transportation and Logistics, creating a specific exception to the stay at home order for airports.¹ Places of worship are not listed as essential. Instead, under a complex 4-tier system called “Blueprint For A Safer Economy,” places of worship are either (1) banned from meeting in their sanctuaries (Purple Tier 1), (2) are significantly restricted to *the lesser of* 100 persons or 25% capacity (Red Tier 2), (3) are restricted to *the lesser of* 200 persons or 50% (Orange Tier 3), or (4) 50% maximum capacity (Yellow Tier 4).² There is no green tier where religious assemblies can gather indoors at full capacity. Per Executive Order N-33-20, the State system also allows local public health officials to subject places of worship to even greater restrictions.

The County did just that. The Santa Clara Director of Public Health forced worshipers outdoors into the heat and smoke of summer and the cold and rain of autumn and winter.

Challenge to County Orders Relevant to this Application

The County promulgated a public health order addressing worship services in its Capacity Directive (Exh. E), which is the subject of this application, and reads,³

Business/Entity/Activity Type	Indoors	Outdoors
Gatherings (<i>e.g.</i> , political events, weddings, funerals,	Prohibited	Allowed up to 200 people per gathering, but subject to the

¹ *Id.*, at p. 10 TRANSPORTATION AND LOGISTICS.

² *Industry Guidance to Reduce Risk – Places of worship and cultural ceremonies* (updated Nov. 6, 2020). Accessed at <https://covid19.ca.gov/industry-guidance/#worship>

³ Except for a 48-hour period of time when the District Court enjoined the County pursuant to *South Bay II* requiring a 25% capacity allowance for places of worship, this essential rule has been in place.

worship services, movie showings, cardroom operations)		limitations set forth by the State, which generally prohibit all gatherings except religious services, cultural ceremonies, political protests, other gatherings allowed by a State guidance document, and outdoor gatherings of up to 3 households.
--	--	--

Numerous other business/entity/activity types are allowed at 20% capacity. These include: grocery and retail stores, personal care businesses (e.g., hair salons, nail care, tattoo and body art, skin care, waxing, and other hair removal), other “non-essential limited services” (e.g., pet grooming and shoe repair), indoor public transit waiting areas, all other essential and critical infrastructure facilities (including government facilities), and any other facility allowed to open to the public under State and County orders. Exh. E at 2.

What is more, the County’s *Gathering Directive* creates its own bespoke definition of *gathering*:

A “gathering” is an event, assembly, meeting, or convening that brings together multiple people from separate households in a single space, indoors or outdoors, at the same time and in a coordinated fashion—like a wedding, banquet, conference, religious service, festival, fair, party, performance, competition, movie theater operation, fitness class, barbecue, protest, or picnic. Exh. F at 2; Exh. D, Order at 27.

Of note, airports are exempted from the definition. The County Public Health Director explained:

As many public health officials have noted, airports present an elevated risk of exposure to COVID-19 given the number of people passing through from different locations....[T]he Public Health Department is

not currently recommending closure of the airport given the significant societal harms lack of access to travel would cause.⁴

Of note, all parts of the County, whether incorporated or not, are under the jurisdiction of the Santa Clara Public Health Department.⁵ Mineta San Jose International Airport is within that jurisdiction and hosts large gatherings of travelers from all over the world in the seating areas of 30 gates in 2 terminals.

Most churches were initially cooperative with State and County officials because they were led to believe that the restrictions on worship would be a temporary 14-day burden. Instead, the State and County have engaged in a pattern and practice that continually stretches the ban on those who congregate for sacred purposes. This has gone on for nearly a year with no foreseeable end to the County's orders that prohibit indoor worship, i.e., "This ordinance shall stay in full force and effect until repealed by the Board of Supervisors."⁶

In recent months, County officials have monitored, harassed, sued, and fined houses of worship for violating worship restrictions. As their buildings sit abandoned and their liberties under the Bill of Rights continue to be subject to suspension, the Churches have lost patience and seek redress from the courts.

⁴ "County of Santa Clara Public Health Department: Statement Regarding COVID-19 and Airports." Mar. 11, 2020. Accessed at <https://www.sccgov.org/sites/phd/news/Pages/covid-19-airports.aspx>

⁵ Santa Clara County Ordinance NS 9.921. (Aug. 11, 2020) Accessed at <https://www.sccgov.org/sites/covid19/Documents/ordinance-ns-9-291.pdf>.

⁶ Santa Clara County Ordinance NS 9.921, EXPIRATION §14.

Relevant Procedural History

The Churches filed a motion for preliminary injunction. On January 29 the District Court issued an Order granting the motion enjoining enforcement of the State Defendants' 100- and 200-person capacity limits for places of worship in Red Tier 2 and Orange Tier 3 but not the percentage based capacity limitations of any tier. The District Court denied the motion as to the complete ban on indoor worship services under Purple Tier 1. Injunctive relief against the Santa Clara County Defendants' restrictions on gatherings was also denied. Exh. D.

The Churches filed a notice of interlocutory appeal to address those portions of the District Court order denying preliminary injunctive relief (Feb. 1). A motion for injunction pending appeal was filed on February 2. While that motion was pending, on February 5 the Supreme Court reversed the Ninth Circuit in *South Bay II*. A notice of recent decision was filed with the District Court by the Churches on Saturday, February 6. On Monday, February 8, the District Court granted the Churches' motion enjoining **both** the State and County Defendants, allowing the Churches to meet at 25% capacity in compliance with *South Bay II*. Exh. C. The County changed its public health order to allow places of worship to meet, but only at **20% capacity**. However, the County filed a motion seeking leave for reconsideration in the District Court that same day (Feb. 9). Late on the night of February 10, the District Court reversed itself and stayed its order granting the Churches an injunction

pending appeal. Exh. B. The next day (Feb. 10), the County rescinded its 20% gathering rule for places of worship and set them back to **0% capacity** for indoor worship services. An emergency motion seeking a stay was filed with the Ninth Circuit's motion panel (Feb. 11). Late Friday (Feb. 12) the Ninth Circuit denied the motion. Exh. A.

REASONS FOR GRANTING THE APPLICATION

When the legal rights in an application are indisputably clear, a Circuit Justice has authority to provide the requested relief. *Turner Broadcasting System, Inc. v. FCC*, 507 U.S. 1301, 1302 (1993) (Rehnquist, C.J., in chambers). During the last three months, the Supreme Court has issued two pinpoint decisions removing any doubt that public health orders placing religious institutions or activities in a disfavored position are not neutral or generally applicable and must be reviewed under strict scrutiny. *Roman Catholic Diocese of Brooklyn v. Cuomo*, 590 U.S. ___, 14 S.Ct. 63 (2020) and *South Bay II*. Further, in addition to the nearly identical legal premises at issue, this application sits in the same procedural posture as the religious institutions in *Roman Catholic Diocese of Brooklyn v. Cuomo* and *South Bay II*, in that both were brought as emergency applications. *Roman Catholic Diocese of Brooklyn v. Cuomo*, 14 S.Ct. at 65, *South Bay II* at _____. Moreover, there is a significant possibility that this Court would grant certiorari and reverse because the violation of the Churches' right is indisputably clear. *Am. Trucking Associations, Inc. v. Gray*, 483 U.S. 1306, 1308 (1987).

I. THE VIOLATION OF THE CHURCHES' RIGHTS IS INDISPUTABLY CLEAR.

The Churches concede for purposes of this application that slowing the spread of COVID 19 stands as an interest which is compelling. *South Bay II*, 592 U.S. ____ (2021) (Gorsuch, J., concurring). But the Bill of Rights cannot be placed on the injured-reserved list to be brought back out on the civic field of play after the pandemic is over. To the contrary, the liberties secured by the Constitution stand as all the more precious when the nation faces crisis. The architects of our Constitution knew that the faithful need the solace of their faith in perilous times. Article III courts have a duty to jealously and zealously protect the peoples' rights from the other two branches of government and the States in times like these. *Id.* Since the Thanksgiving holiday, this Court has twice intervened when religious institutions or their activities appeared on government lists of the dangerous, the unessential, and the unwanted. Because it is self-evident that nothing is more central to the life of a religious congregation than its worship services, explicitly forbidding that most meaningful weekly event fails the requisite of general applicability and neutrality. Thus, it is indisputably clear that the lower courts failed to measure the County's public health order on the scales of strict scrutiny.

A. The County's 0% capacity for indoor worship services is neither neutral nor generally applicable.

At issue is whether the County public health orders completely prohibiting indoor worship services are neutral laws of general applicability. Beginning with the challenged text, the County has promulgated the Capacity Directive and Gathering Directive. *See* Exhs. E at 2, F. The Capacity Directive reads in chart form as follows:

Business/Entity/Activity Type	Indoors	Outdoors
Gatherings (<i>e.g.</i> , political events, weddings, funerals, worship services, movie showings, cardroom operations)	Prohibited	Allowed up to 200 people per gathering, but subject to the limitations set forth by the State, which generally prohibit all gatherings except religious services, cultural ceremonies, political protests, other gatherings allowed by a State guidance document, and outdoor gatherings of up to 3 households.

The District Court Order maintains that the Gathering Directive, under the County Orders, “applies regardless of whether the event has a religious or secular purpose” (Exh. D, Order at 27) and thus is subject to and survives rational basis review. *Id.* at 28. Not true.

First, the Gathering Directive identifies a specific religious activity, i.e., “Gatherings – worship services.” The operative language of the County public health order restricts a religious activity by explicit reference to the conduct’s sacred character. *McDaniel v. Paty*, 435 U.S. 618 (1978). Because the restriction enumerates

religious practice, conduct, belief, or motivation “without a secular meaning discernable from the language or context,” it falls short of “facial neutrality.” *Church of Lukumi Babalu Aye v. City of Hialeah*, 508 U.S. 520, 533 (1993).

Second, the Gathering Directive subjects religious activities and entities to especially harsh treatment in view of other businesses/entities/activities/types.

Consider these indoor examples:

- grocery and retail stores at 20% capacity – worship services 0%
- personal care businesses at 20% capacity – worship services 0%
- public transit waiting areas at 20% capacity – worship services 0%
- “non-essential” limited services at 20% capacity – worship services 0%
- all essential and critical infrastructure facilities and government facilities of any kind at 20% capacity – worship services 0%
- any other facility allowed to open to the public under State and County orders at 20% – worship services 0%

In addition to the above, airports operate at 100% capacity but indoor worship services are banned. As recently explained, “When a State so obviously targets religion for differential treatment, our job becomes that much clearer.” *South Bay II*, 592 U.S. ____ (Gorsuch, J., concurring).

Unlawful discrimination, which stands as the antithesis of neutrality, involves making a distinction between a group of people, an entity, or related activity based

upon a protected characteristic (e.g., religion) coupled with the imposition of special disabilities on that basis. *Lukumi*, 508 U.S. at 533 citing *McDaniel*, 435 U.S. 618 (1978). In *Lukumi*, a municipality banned animal sacrifices. Here, the County bans indoor worship services. This indisputably triggers strict scrutiny review. *Roman Catholic Diocese of Brooklyn v. Cuomo*, 590 U.S. __ (2020) citing *Lukumi*, 508 U.S. at 543. “[I]t does not suffice for a State to point out that, as compared to houses of worship, *some* secular businesses are subject to similarly severe...treatment...Rather, once a State creates a favored class of businesses...the State must justify why houses of worship are excluded from that favored class.” *Roman Catholic Diocese of Brooklyn v. Cuomo*, 590 U.S. __ (Kavanaugh, J., concurring).

The lower courts committed error by viewing the Gathering Directive as “not impos[ing] any express restrictions on ‘places of worship.’” Exh. D, Order at 26. This reads “worship services” out of the text. The plain meaning of the Gathering Directive is that it explicitly applies to worship services. It requires little explanation that places of worship sit as the venue for worship services. Worship services are not conducted at city hall, public transit waiting areas, or grocery stores. Rather, they occur at churches, synagogues, temples, and mosques. Indeed, the Capacity Directive states that under its boutique definition, prohibited indoor “gatherings” explicitly includes “worship services.” Exh. E. What is more, the Gathering Directive most clearly gives preferential treatment to a host of other activities. Many of these are the very ones that the Supreme Court found problematic in *Roman Catholic Diocese of*

Brooklyn v. Cuomo and *South Bay II*, e.g., grocery stores, transportation facilities, liquor stores, airports, body piercing, and hair salons.

Turning specifically to airports, the allowance for 100% capacity is particularly troubling because these restrictions are underinclusive. The District Court's analysis in this regard is not convincing. The Court Order states that groups of people awaiting flights at airport gates do not fall under the definition of a "gathering" because they do not "bring[] together multiple people from separate households in a single space . . . at the same time and in a coordinated fashion." Exh. D, Order at 27, quoting the Gathering Directive.

There are two primary problems with this. First, the definition of "gathering" that the County has created excludes activities and entities which the Supreme Court has found to be proper comparators to places of worship, e.g., big box stores, retail, grocery, personal services, transportation, and airports. The County's essential strategy is: "We're going to say those gatherings aren't 'gatherings' according to our self-created definition."

What is more is that exempting airports from gatherings as the County defines it is inconsistent with its own definition -- the "bringing together [of] multiple people from separate households in a single space . . . at the same time and in a coordinated fashion." Exh. F. This is exactly what occurs at the gate of an airport. Passengers, typically from multiple separate households, are explicitly directed to a given gate to wait in a designated area for a scheduled, coordinated departure; this is the very

definition of a “gathering” under the Gathering Directive as contained within the County Orders. *Id.*

Congregants at a worship service and passengers at a gate not only both fall within the operational definition of the Gathering Directive, but also are remarkably similar in terms of the number of people present (100-400 people), the time seated together (approximately one hour), and the nearness of physical proximity due to that seating. In his concurrence denying emergency relief in a challenge to the State’s restrictions on gatherings at houses of worship – restrictions far less draconian than those at issue here -- Chief Justice Roberts explained that the crucial inquiry is whether there is a comparable secular gathering where “large groups of people gather in close proximity for extended periods of time.” *South Bay United Pentecostal Church v. Gavin Newsom*, 590 U.S. __ (2020); 140 S.Ct. 1613, 1614 (Roberts, C.J., concurring in denial of application for injunctive relief) (*South Bay I*). Of course, since *South Bay I* two other Supreme Court decisions (*Roman Catholic Diocese of Brooklyn v. Cuomo* and *South Bay II*) have greatly broadened the scope of comparators.

What is more, the record is clear that at the time the County promulgated the Gathering Directive, it never claimed that an airport falls outside of the definition. Instead, the County *exempted* airports from its definition of gatherings. “[T]he Public Health Department is not currently recommending closure of the airport given the

significant societal harms lack of access to travel would cause... .”⁷ The evidence is not subject to reasonable dispute that airports were not exempted because they are safe. They were exempted because the State and County considered them *essential* or *critical* entities. This is admitted. Airports were left open “given the significant societal harms lack of access to travel would cause.”⁸ But “once [the government] creates a favored class of businesses...[it] must justify why houses of worship are excluded from that favored class.” *Roman Catholic Diocese of Brooklyn v. Cuomo*, 590 U.S. __ (2020) (Kavanaugh, J., concurring). This leads to the indisputable conclusion that strict scrutiny must apply to the County’s Capacity Directive and Gathering Directive.

B. Use of the wrong legal standard by the lower courts is a sufficient ground to grant the application until the County carries its legal burden.

The lower court’s application of rational basis review was indisputable error. Because strict scrutiny review applies, the County must prove a compelling interest. As conceded in the courts below, slowing the spread of the pandemic is a compelling interest. But the burden remains for the County to prove that its rules are narrowly tailored and the means are the least restrictive on the liberty interests of the Churches. *Roman Catholic Diocese of Brooklyn v. Cuomo*, 590 U.S. __ (2020). Because the lower

⁷ “County of Santa Clara Public Health Department: Statement Regarding COVID-19 and Airports.” Mar. 11, 2020. Accessed at <https://www.sccgov.org/sites/phd/news/Pages/covid-19-airports.aspx>.

⁸ *Id.*

courts used the wrong standard of review, the writ of injunction should be granted until the County carries its legal burden.

The County cannot do so because of the exemptions for numerous businesses and airport gates. Orders allowing gatherings at departure gates and other business activities but restricting religious assemblies fail to meet the narrowly tailored requirement for the same reason that the orders are not generally applicable. The stated purpose of the County's Capacity Directive and Gathering Directive is to prevent the spread of a contagious disease. Despite this claim, the County allows the public to congregate as passengers at the gate of an airport but restricts those same persons from congregating at a church as worshipers. The County also allows the public to be at a variety of entities to conduct business at 20% capacity but limits worship services at places of worship to 0% capacity. *See Lukumi*, 508 U.S. at 543 ("The principle that government, in pursuit of legitimate interests, cannot in a selective manner impose burdens only on conduct motivated by religious belief is essential to the protection of the rights guaranteed by the Free Exercise Clause.").

Specifically, as to airports, there is no claim by the County, nor can there be, that congregating at airports is safe whereas gathering at a place of worship is not. Just five days before the issuance of the first County worship ban and the shuttering of churches, the County Public Health Director released a statement directly addressing airports: "As many public health officials have noted, **airports present an**

elevated risk of exposure to COVID-19 given the number of people passing through from different locations.”⁹

Here the County’s orders related to gatherings “fail to prohibit nonreligious conduct” at the airport or other businesses “that endangers these [public health] interests in a similar or greater degree” than the religious conduct of sitting in a church. *Lukumi*, 508 U.S. at 543. The public health orders that have left church buildings abandoned throughout the County are underinclusive and thus fall short of the requirements for narrow tailoring.

II. THE CHURCHES FACE IRREPARABLE HARM BY THE CONTINUED EXCLUSION OF CONGREGANTS FROM INDOOR WORSHIP SERVICES

The Churches have endured eleven months with only the slimmest of opportunities to gather indoors for worship services. Absent immediate judicial relief, by the time briefing is completed at the end of March on the interlocutory appeal, the Churches will have sat mostly empty for a year. “The deprivation of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.” *Elrod v. Burns*, 427 U.S. 347, 373 (1976). As stated in their numerous declarations without objection or dispute, the Churches are mandated by Scripture to meet in-person for corporate worship, prayer, fellowship, and communion. Watching online services is not sufficient. Streaming a prayer service

⁹ *CPHD Statement Regarding Airports* (Mar. 11, 2020) (emphasis added). Accessed at <https://www.sccgov.org/sites/phd/news/Pages/covid-19-airports.aspx>

cannot be an adequate substitute for in-person worship any more than streaming *MasterChef* can be an adequate substitute for sitting down to a meal. Without injunctive relief, the Churches will continue to struggle to meet with severe restrictions and the continued threat of civil and criminal penalties.

III. THE BALANCE OF HARDSHIPS TIPS SHARPLY IN THE CHURCHES' FAVOR.

The balance of equities tips sharply in the Churches favor, as there is no substitute for in-person religious worship and the freedom to assemble peacefully is a core constitutional right. Given their showing of the invalidity of the public health orders, the Churches necessarily have demonstrated that leaving those orders in place for even a brief period of time “substantially chill[s] the exercise of fragile and constitutionally fundamental rights,” for many thousands of parishioners who attend the Churches and thereby constitutes an intolerable hardship. *College Republicans at San Francisco State University v. Reed*, 523 F. Supp. 2d 1005, 1011 (N.D. Cal. 2007) (citing *Sammartano v. First Jud. Dist. Ct.*, 303 F.3d 959, 973-74 (9th Cir. 2002)). This is all the more true as the one-year anniversary of the suspension of the Churches’ First Amendment rights approaches.

The Churches do not question the importance of health and safety. The Churches do question, however, the means by which that end is achieved – “an end which officials may foster by persuasion and example is not in question. The problem is whether under our Constitution compulsion as here employed is a permissible means for its achievement.” *W. Va. State Bd. of Educ. v. Barnette*, 319 U.S. 624, 640

(1943). The Churches continue to face extreme restrictions on their ability to gather for worship services.

The County would not need to be exposed to meaningful harm as a result of injunctive relief. Moreover, public health officials can still impose reasonable health and safety requirements like they do for numerous entities and activities. The Churches are prepared to follow all reasonable safety precautions equal to those imposed on others. “California already trusts its residents and any number of businesses to adhere to proper social distancing and hygiene practices.” *South Bay I* at 1615 (Kavanaugh, J., dissenting). If the County allowed church services, the impact on public health would, at best, be less than and, at worse, be identical to, the impact currently experienced by allowing “essential” and “non-essential” businesses and activities to operate at 20% capacity or by allowing mass gatherings at airport gates.

IV. AN INJUNCTION IS IN THE PUBLIC INTEREST

The County has proffered no proof, nor can it, that attendance at the applicant Churches spreads COVID 19. *Roman Catholic Diocese of Brooklyn v. Cuomo*, 592 U.S. ____ (2020). Further, the free exercise of religion and peaceful assembly are core constitutional rights under the First Amendment. “It is always in the public interest to prevent the violation of a party’s constitutional rights.” *de Jesus Ortega Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012) (internal quotation marks omitted). As the County’s District Attorney Ms. Alvarado stated, “I don’t feel comfortable being in

that position of saying, ‘You know, your constitutional rights don’t really matter right now,’ but I’ve had to.”¹⁰ After eleven months, “it is time -- it is past time” (*Roman Catholic Diocese of Brooklyn v. Cuomo*, (Gorsuch, J., concurring) for these Churches to be able to meet this weekend in a manner consistent with the 25% capacity the Supreme Court granted to the rest of California in *South Bay II*.

V. IN THE ALTERNATIVE, THE COURT SHOULD ALSO GRANT CERTIORARI BEFORE JUDGMENT.

In the alternative to entering an injunction pending appeal, the Court should grant certiorari before judgment in the Court of Appeals and enjoin the Governor’s actions pending disposition by this Court. *See* 28 U.S.C. § 2101(e). Religiously discriminatory COVID-19 restrictions are an ongoing problem of nationwide scope—yet without prompt action the Court will be unable to give additional guidance on these issues until next Term.

CONCLUSION

In frustration, Justice Gorsuch wrote, “Today’s order should have been needless; the lower courts in these cases should have followed the extensive guidance this Court already gave.” *South Bay II*, (Gorsuch, J., concurring). The Churches share that frustration. Enforced by seven-figure administrative fines and the threat of prosecution and incarceration, the County continues to place governmental restraints

¹⁰ Katey Rusch. “How Do You Enforce a Law That Tramples the Land of the Free?” *The New York Times*, May 11, 2020, quoting Santa Clara County Deputy District Attorney, Angela Alvarado. Accessed at <https://www.nytimes.com/2020/05/11/us/coronavirus-california-lockdowns.html>.

on First Amendment liberties never seen or imagined in this nation prior to 2020. As articulated, perhaps ironically, by the Santa Clara County Deputy District Attorney, “Right now we’re putting parts of the Constitution on hold. We really are. Freedom of assembly. Right to practice religion.”¹¹ By this application, the Churches seek the restoration of those rights to open their doors this Sunday and grant the emergency application for writ of injunction. In the alternative, the applicants request the granting of certiorari or summary reversal.

Dated: February 16, 2021

s/ Kevin Snider

Kevin T. Snider, *Counsel of record*

Emily C. Mimnaugh

PACIFIC JUSTICE INSTITUTE

P.O. Box 276600

Sacramento, CA 95827

Tel. (916) 857-6900

E-mail: ksnider@pji.org

emimnaugh@pji.org

Sharonrose Cannistraci

CANNISTRACI LAW FIRM

236 N. Santa Cruz, Ave., Suite 217

Los Gatos, California 95030

Tel. (408) 307-5662

E-mail: cannistracilaw@gmail.com

Marlis McAllister

McALLISTER LAW GROUP

P.O. Box 756

Pine Grove, CO 80470

Tel. (650) 346-3792

E-mail: marlis@mcallisterlaw.net

¹¹*Id.*

EXHIBIT A

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

FILED

FEB 12 2021

MOLLY C. DWYER, CLERK
U.S. COURT OF APPEALS

GATEWAY CITY CHURCH; et al.,

Plaintiffs-Appellants,

v.

GAVIN NEWSOM; et al.,

Defendants-Appellees.

No. 21-15189

D.C. No. 5:20-cv-08241-EJD
Northern District of California,
San Jose

ORDER

Before: CANBY, GRABER, and FRIEDLAND, Circuit Judges.

This appeal challenges the district court’s January 29, 2021 order denying in part appellants’ motion for a preliminary injunction. Appellants move for an injunction pending appeal, seeking to prohibit the enforcement of Santa Clara County, California’s restrictions on indoor gatherings as applied to their places of worship.

“The standard for evaluating an injunction pending appeal is similar to that employed by district courts in deciding whether to grant a preliminary injunction.” *Feldman v. Ariz. Sec’y of State’s Office*, 843 F.3d 366, 367 (9th Cir. 2016); *see also Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 20 (2008) (stating standard). We review the district court’s denial of a preliminary injunction for abuse of discretion, although we review de novo the district court’s interpretation

of the underlying legal principles. *See Sw. Voter Registration Educ. Project v. Shelley*, 344 F.3d 914, 918 (9th Cir. 2003).

On the basis of the record before us, we conclude that appellants have not demonstrated a sufficient likelihood of success on the merits to warrant injunctive relief pending appeal. *See Winter*, 555 U.S. at 20.

The challenged ban on indoor “gatherings” currently in effect for Santa Clara County applies equally to all indoor gatherings of any kind or type, whether public or private, religious or secular. The Directive, which appears to affect far more activities than most other jurisdictions’ health measures, does not “single out houses of worship” for worse treatment than secular activities. *See Roman Catholic Diocese of Brooklyn v. Cuomo*, 141 S. Ct. 63, 66 (2020). Nor does the Directive affect whether appellants may continue to remain open for purposes that do not involve “gatherings.”

Accordingly, appellants have not demonstrated that the district court likely erred in determining that the County’s prohibition on indoor gatherings is a neutral law of general applicability and therefore properly subject to rational basis review. *See S. Bay United Pentecostal Church v. Newsom*, No. 20A136, 2021 WL 406258, at *1 (U.S. Feb. 5, 2021) (Barrett, J., concurring) (observing that where a ban on prohibited conduct “applies across the board,” it “thus constitutes a neutral and generally applicable law”).

Appellants' emergency motion for injunctive relief pending this appeal (Docket Entry No. 6) is therefore denied.

EXHIBIT B

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN JOSE DIVISION

GATEWAY CITY CHURCH, et al.,
Plaintiffs,
v.
GAVIN NEWSOM, et al.,
Defendants.

Case No. [5:20-cv-08241-EJD](#)

**ORDER GRANTING MOTION FOR
LEAVE TO FILE A MOTION FOR
RECONSIDERATION**

Re: Dkt. No. 76

On February 8, 2021, the Court granted Plaintiffs' Emergency Motion for relief pending appeal in light of the Supreme Court's decision in *South Bay United Pentecostal Church, et al. v. Newsom*, 592 U.S. ____ (Feb. 5, 2021) No. 20A136 (20-746) (*South Bay II*). Dkt. No. 75 ("February 8 Order"). On February 9, 2021, Defendants County of Santa Clara and County Health Officer Dr. Sara H. Cody (collectively "County") filed a Motion for Leave to File Motion for Reconsideration of the Court's February 8, 2021 Order. Dkt. No. 76 ("Motion for Leave"). Later that day, Plaintiffs filed a Preliminary Opposition to the County's Motion for Leave. Dkt. No. 77 ("Preliminary Opposition").

The County argues that this Court erred in relying on the Supreme Court decision in *South Bay II*, which addressed the State's restrictions, to enjoin the County's restrictions on gatherings because the County's restrictions remain neutral and generally applicable. In their Preliminary Opposition, Plaintiffs argue that a motion for reconsideration is procedurally improper under Civil Local Rule 7-9(b). Under that rule, a motion for reconsideration is appropriate where "a material difference in fact or law exists from that which was presented to the Court before entry of the

Case No.: [5:20-cv-08241-EJD](#)
**ORDER GRANTING MOTION FOR LEAVE TO FILE A MOTION FOR
RECONSIDERATION**

interlocutory order for which reconsideration is sought.” Civil L.R. 7-9(b). Although *South Bay II* was published before this Court’s February 8 Order, neither party had the opportunity to present arguments related to the new precedent. Having considered the Motion for Leave and Preliminary Opposition, the Court finds that further argument is warranted regarding how *South Bay II* affects Plaintiffs’ request to enjoin the County restrictions.

The Court, therefore, orders as follows:

1. The County’s Motion for Leave is GRANTED.
2. Enforcement of the February 8 Order is STAYED until the County’s motion for reconsideration is resolved.
3. The Court deems the County’s Memorandum of Points and Authorities in Support of the Motion for Leave as the County’s Memorandum of Points as Authorities in Support of Reconsideration. Plaintiffs’ response to the motion for reconsideration shall be due no later than March 8, 2021. The County’s reply, if any, shall be due no later than March 12, 2021. A hearing on the motion is tentatively set for March 19, 2021 at 9:00 a.m. via Zoom videoconference.

IT IS SO ORDERED.

Dated: February 10, 2021



EDWARD J. DAVILA
United States District Judge

Case No.: [5:20-cv-08241-EJD](#)
ORDER GRANTING MOTION FOR LEAVE TO FILE A MOTION FOR
RECONSIDERATION